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Superior Court of California,
County of Los Angeles
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David W. Slayton,
Executive Officer/Clerk of Court,
By E. Flores, Deputy Clerk

Attorneys for Plaintiff,
NORTHROP GRUMMAN FEDERAL CREDIT UNION

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF LOS ANGELES

NORTHROP GRUMMAN FEDERAL CREDIT UNION,	)	Case No.:
	)	24CHLC00396
Plaintiff,	)	COMPLAINT FOR MONEY
vs.	)	
MARIA FOSS; JANET M. WADE, and	)	Demand is less than \$35,000.00
DOES 1 through 10, inclusive,	)	Limited Civil Case
Defendant.	)	
	)	
	)	

Plaintiff alleges:

FIRST CAUSE OF ACTION
(Breach of Contract)
(Against all Defendants)

1. Plaintiff NORTHROP GRUMMAN FEDERAL CREDIT UNION is a federally chartered credit union and, at all times herein mentioned, was a cooperative corporation duly organized and existing by the virtue of the laws of the United States of America with its principal place of business in the City of Gardena, County of Los Angeles, State of California, and is now, and at all times material to the cause of action stated herein has been, duly authorized to do business as a credit union in the State of California.

1 2. Plaintiff is informed and believes and based upon this information and belief
2 alleges that Defendants MARIA FOSS and JANET M. WADE are individuals residing in the
3 County of Los Angeles, State of California.

4 3. The true names and capacities of defendants named as DOES 1 through 10,
5 inclusive, whether individual, corporate, partnership, associate, or otherwise are unknown to
6 plaintiff who, therefore, sues said defendants by said fictitious names. Each said defendant was,
7 and is, responsible for the events and happenings herein, and proximately caused damage to
8 Plaintiff as set forth herein. This complaint will be amended to show the true names and
9 capacities of DOES 1 through 10, inclusive, when they are ascertained.

10 4. Each defendant, at all times mentioned herein, was the agent, servant,
11 representative, and/or employee of each of the remaining defendants, and was at all times acting
12 within the course and scope of said agency, service, employment and/or representation; and
13 acted in such manner with the full knowledge, permission, and/or consent of his or its co-
14 defendants, and each of them, and of each other.

15 5. The action set forth in this complaint is not subject to Civil Code Section
16 1812.10, or Civil Code Section 2984.4, but is subject to the Code of Civil Procedure Section
17 395(b). Under Code of Civil Procedure Section 395(b), this Court is the proper venue for the
18 action stated herein.

19 6. On or about June 24, 2022, Defendants executed and delivered to Plaintiff at the
20 City of Gardena, County of Los Angeles, State of California, a written loan agreement.

21 7. The Credit Union provided Defendants with the written loan agreement and a
22 Credit Union Note and Federal Truth-In-Lending Disclosure Statement wherein it states that
23 Defendants agree to adhere to the terms and conditions of the agreement ("Agreement").

24 8. Defendants have failed and refused to make payments under the terms and
25 conditions of said Agreement. Defendants are, therefore, in default. Any payments made by
26 Defendants have been credited to Defendants.

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1 9. Plaintiff has fulfilled all of its promises, conditions and covenants under the
2 terms and conditions of the Agreement, except for those promises, conditions and covenants
3 excused by the acts and omissions of Defendants.

4 10. The Agreement provides, among other things, that should Defendants, or any of
5 them, default in making any payment when due, or in any other terms or conditions of the
6 Agreement, Plaintiff may, at its option, accelerate the amounts due under the Agreement.

7 11. Pursuant to the Agreement described above, there is due, owing, and unpaid to
8 Plaintiff by Defendants the principal sum of \$29,199.93; together with interest on the principal
9 sum at the rate of ten percent (10%) per annum from April 29, 2023, until judgment is entered.

10 12. Demand has been made upon Defendants for payment of the sums due, owing,
11 and unpaid to Plaintiff, but Defendants have failed and refused to pay the same, and the entire
12 balance has been declared due, owing, and unpaid.

13 13. Defendants' actions necessitated Plaintiff's retention of legal counsel. Under the
14 terms of the Agreement executed by Defendants, Plaintiff is entitled to recover attorneys' fees.

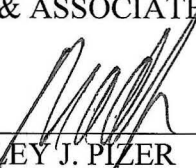
15 WHEREFORE, Plaintiff prays judgment against Defendants as follows:

16 **FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS**

- 17 1. For the principal sum of \$29,199.93;
18 2. For interest on the principal sum at the rate of ten percent (10%) per annum from
19 April 29, 2023, until judgment is entered;
20 3. For attorneys' fees pursuant to the Agreement;
21 4. For costs of suit incurred herein; and
22 5. For such other and further relief as the court deems just and proper.

23 Dated: January 5, 2024

PIZER & ASSOCIATES, P.C.

24
25 By: 
26 BRADLEY J. PIZER
27 Attorneys for Plaintiff,
28 NORTHROP GRUMMAN FEDERAL
CREDIT UNION